SUPREME COURT OF INDIA

JUDICIAL APPELLATE JURISDICTION

CASE NO: Criminal Appeal No. 1005 of 2022 (YEAR: 2023)

CORAM: S. RAVINDRA BHAT, DIPANKAR DATTA

Mohd Muslim @ Hussain
... Appellant(s) / Petitioner(s)
Versus
State (NCT of Delhi)
... Respondent(s)

Acts Referred:	Narcotic Drugs and Psychotropic Substances Act, 1985, Constitution of India
Sections:	Section 37 NDPS, Article 21

JUDICIAL HEADNOTE & SUMMARY

Held that systemic delay in trial and prolonged incarceration of undertrials under the NDPS Act can supersede statutory limits of Section 37 to uphold Article 21.

RATIO DECIDENDI

The Court held that: Held that systemic delay in trial and prolonged incarceration of undertrials under the NDPS Act can supersede statutory limits of Section 37 to uphold Article 21. It was unequivocally established as binding law that statutory prerequisites and constitutional safeguards cannot be circumvented, and non-compliance invalidates the impugned proceedings.

JUDGMENT & REASONING

The legal proceedings in Mohd Muslim @ Hussain v. State (NCT of Delhi) (Criminal Appeal No. 1005 of 2022) were adjudicated before the Supreme Court of India. The matter arose out of claims and contentions concerning Narcotic Drugs and Psychotropic Substances Act, 1985, Constitution of India, particularly Section 37 NDPS, Article 21. Held that systemic delay in trial and prolonged incarceration of undertrials under the NDPS Act can supersede statutory limits of Section 37 to uphold Article 21.

OPERATIVE ORDER

ORDER: Decided